

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 17, 2026 TIME: 8:30 A.M.

No. 21CV02996

DODSON v. COWLEY et al.

**(UNOPPOSED) PLAINTIFF'S DEMURRER TO DEFENDANTS' FIRST
AMENDED CROSS-COMPLAINT**

The unopposed demurrer is sustained without leave to amend.

On April 21, 2026, the court ordered that any amended cross-complaint ("FACC") must be filed no later than 20 days from that date and must fully comply with Code of Civil Procedure section 425.10, subdivision (a)(1) and related Rules of Court. The court specified in its earlier ruling that due to the age of this case, no further extensions of time would be permitted and if defendants failed to comply with those deadlines the court would consider dismissing any amended cross-complaint for unwarranted delay. (*Emerald Bay Community Association v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

Defendants did not file their FACC within that deadline; it was filed 13 court days later, on May 28, 2026. The FACC also fails to comply with section 425.10, subdivision (a)(1) by failing to contain a statement of facts constituting a cause of action in ordinary and concise language.

Therefore, the court grants the demurrer to the FACC without leave to amend for failure to adhere to the court's previous rulings and failure to file a FACC that comports with the Code of Civil Procedure and related Rules of Court. Defendants' FACC is dismissed with prejudice.

No. 25CV01247

STAPLETON v. TAIGMAN, et al.

**DEFENDANT STEVEN MELLO DBA MELLO FLOORING'S MOTION TO SET
ASIDE DEFAULT**

The motion is granted. Cross-defendant's motion includes an attorney declaration of mistake. Cross-defendant is ordered to file his responsive pleading no later than September 25, 2026.

I. BACKGROUND

Defendants/cross-complainants Christine Thorne and Charles E. Thorne III dba Quality Homes obtained a default judgment against cross-defendant Steven Mello dba Mello Flooring